Fawaad Nasir @ Ziya S/O Mr. N.H. Narir vs State on 9 October, 2007

Author: V.B. Gupta

Bench: V.B. Gupta

JUDGMENT

V.B. Gupta, J.

1. Present revision petition under Section 53 of Juvenile Justice Act read with Section 482 Crl.P.C. has been filed by the petitioner seeking quashing of order dated 1st June, 2007, vide which Juvenile Justice Board dismissed the bail application and order dated 13th July, 2007 vide which Additional Sessions Judge dismissed the appeal filed by the petitioner seeking bail. Along with it an application seeking interim bail has also been filed by the petitioner.

2. The case of prosecution is that the present petitioner along with his co-offenders including four adult accused had murdered one Captan. The motive behind the murder was that, the deceased used to demand Rangdari from the petitioner and his co-offenders. One Rakesh is an eye- witness to this incident and he has clearly mentioned the role played by the present petitioner in the incident. Three adult co-accused are stated to be absconding and they are yet to be arrested.

3. It has been contended by learned Counsel for the petitioner that since the petitioner is a juvenile and was less than 18 years at the time of the alleged crime, he is entitled to bail as per Section 12 of The Juvenile Justice (Care and Protection of Children) Act, 2000 and in support of his contentions learned Counsel has cited a decision of this Court in Sandeep v. State of NCT of Delhi 2007 (3) LRC 416 (Del). Besides this, he has cited some other judgments in support of his contentions. With regard to the interim bail, it has been contended that petitioner has to be appear in the Secondary School Examination at Patna w.e.f. 8th October, 2007 and he may be granted interim bail.

4. On the other hand, it has been argued by learned Counsel for the State that the petitioner is involved in a serious offence and other three co-accused who are adult are absconding and further the petitioner has played a fraud with the Juvenile Justice Board, as the school leaving certificate placed on record has not been issued by the principal of the school. Under these circumstances, the petitioner should not be released on bail.

5. There is no dispute about the principles of law laid down in the various decision cited by learned Counsel for the petitioner. However, the question to be seen is as to whether under the present facts and circumstances of the case, the petitioner can be released on bail or not.

6. Section 12 of The Juvenile Justice (Care and Protection of Children) Act, 2000 reads as under:

> 12. Bail of juvenile.- (1) When any person accused of a bailable or non- bailable offence, and apparently a juvenile, is arrested or detained or appears or is brought before a Board, such person shall, notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974) or in any other law for the time being in force, be released on bail with or without surety [or placed under the supervision of a Probation Officer or under the care of any fit institution of fit persona] but he shall not be so released if there appear reasonable grounds for believing that the release is likely to bring him into association with any known criminal or expose him to moral, physical or psychological danger or that his release would defeat the ends of justice.

(2) When such person having been arrested is not released on bail under Sub-section (1) by the officer in charge of the police station, such officer shall cause him to be kept only in an observation home in the prescribed manner until he can be brought before a Board.

(3) When such person is not released on bail under Sub-section (1) by the Board it shall, instead of committing him to prison, make an order sending him to an observation home or a place of safety for such period during the pendency of the inquiry regarding him as may be specified in the order.

7. According to Sub-clause (1) of this Section, a person accused of non bailable offence shall not be released if there appear reasonable grounds for believing that the release is likely to bring him into association with any known criminal or expose him to moral, physical or psychological danger or that his release would defeat the ends of justice.

8. In the present case, both the Courts below have given a finding to this effect that the offence was committed in association with adult co-accused and other co-accused are absconding and there is every likelihood that the juvenile will again mix up with adult co-accused which will lead to moral and psychological dangers.

9. Under these circumstances, I do not find any infirmity or illegality in the impugned orders passed by the Courts below and there is every likelihood that if the present juvenile is released on bail, he may again mix up with other adult co-accused who are still absconding and it may lead to moral and psychological dangers and his release would defeat the ends of justice. Thus, no grounds are made out for enlarging the juvenile on bail, at this stage.

10. As far as interim bail is concerned, the petitioner wants to submit supplementary examination form and has prayed to be enlarged on interim bail for two months.

11. As per documents placed on record by the petitioner himself, the date for submission of the examination form for supplementary examination was 6th August, 2007 without fine and 10th August, 2007 with fine. Those dates are already over. There is nothing on record to show as to whether the petitioner has submitted his supplementary examination form or not and none of the documents filed by the petitioner, states that presence of the petitioner is required in person for

submitting such form. So no ground for interim bail is also made out.

12. Under these circumstances, the present revision petition is hereby dismissed.